

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 4490

By: Townley

COMMITTEE SUBSTITUTE

An Act relating to maternal care; creating the
Oklahoma Families Thriving Everywhere Now (OFTEN)
Revolving Fund; stating the purpose; providing for
codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 1-234.2 of Title 63, unless
there is created a duplication in numbering, reads as follows:

A. There is hereby created in the State Treasury a revolving
fund for the State Department of Health to be designated the
"Oklahoma Families Thriving Everywhere Now (OFTEN) Revolving Fund".
The fund shall be a continuing fund, not subject to fiscal year
limitations, and shall consist of all monies received by the State
Department of Health from state-appropriated funds, federal funds,
donations, grants, and contributions from any public or private
source and designated for the purpose set forth in this act. All

monies accruing to the credit of said fund are hereby appropriated and may be budgeted and expended by the State Department of Health for the purpose provided in this act. Expenditures from said fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

The program shall include operation of a telecare pregnancy and parenting support program and a maternal health component to provide community outreach, consultations, and care coordination for women experiencing under-supported, high-risk pregnancies, or both, and for parents of young children. The program is designed to:

1. Encourage healthy childbirth;
2. Support childbirth and adoption as alternatives to abortion;
3. Promote stable family formation;
4. Assist in establishing successful parenting techniques;
5. Increase the economic self-sufficiency of families; and
6. Improve maternal and infant health outcomes and reduce health disparities, including disparities among black and other minority mothers who experience higher rates of preterm birth, low birth weight, and maternal morbidity.

B. Program services shall be delivered primarily through electronic means, including telephone, secured video, text, and other remote technologies, and coordinated with in-person pregnancy resource centers, community-based organizations, health care

1 providers, and social service agencies physically located in the
2 State of Oklahoma.

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1-234.3 of Title 63, unless
5 there is created a duplication in numbering, reads as follows:

6 A. To the extent appropriations are available, the State
7 Department of Health shall enter one or more contracts with eligible
8 public or private nonprofit organizations to facilitate operation of
9 the telecare support network and associated maternal health program.

10 B. Services may include, but are not limited to:

11 1. Outreach to at-risk populations eligible for the Program,
12 conducted exclusively through online and digital marketing
13 strategies, including websites, search engine marketing, social
14 media, text messaging, email, and other Internet-based outreach
15 methods;

16 2. Screening for maternal and infant risk factors, including
17 lack of insurance, age under twenty (20) or over thirty-five (35),
18 low educational attainment, prior adverse pregnancy outcomes,
19 chronic medical conditions, and behavioral health risk factors;

20 3. Development of individualized care plans for program
21 participants;

22 4. Consultations, supports, social services case management,
23 referrals, and care coordination to address medical, behavioral
24

1 health, social, educational, economic, environmental, and parenting
2 needs throughout pregnancy and the postpartum period;

3 5. Education and support related to preventive medical care,
4 environmental risks, nutrition, smoking, alcohol and substance use
5 cessation, and other factors that contribute to safer pregnancies
6 and healthier infants;

7 6. Assistance in applying for and connecting to state and
8 federal benefits programs and local charitable resources;

9 7. Behavioral health supports, including referrals for
10 counseling or therapy to address perinatal mood and anxiety
11 disorders;

12 8. Coordination of appointments with in-person pregnancy
13 resource centers or similar agencies that provide counseling,
14 ultrasounds, pregnancy tests, prenatal and parenting education,
15 material support, and adoption information; and

16 9. Tracking and support to encourage attendance at prenatal
17 care, postpartum follow-up visits, and pediatric well-child visits.

18 C. Services supported by this program shall be non-medical in
19 nature and shall not include the direct provision of clinical
20 medical services or the prescription of medications. Nothing in
21 this subsection prohibits program personnel from providing medically
22 accurate, pregnancy-related medical information or from encouraging
23 and facilitating timely prenatal, postpartum, and pediatric medical
24 care by licensed health professionals.

1 SECTION 3. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1-234.4 of Title 63, unless
3 there is created a duplication in numbering, reads as follows:

4 A. In order to receive funding under this act, an entity shall:

5 1. Be a public or private nonprofit organization;

6 2. Have the capacity and provide assurances to deliver services
7 primarily through electronic means as described in Section 1 of this
8 act;

9 3. Acknowledge and certify that the entity:

10 a. does not perform, refer for, or assist with the
11 elective termination of a pregnancy, and

12 b. does not set appointments with or refer women or
13 parents to any entity that performs or recommends
14 elective termination of a pregnancy;

15 4. Allow and agree that:

16 a. the State Department of Health personnel may conduct
17 annual, and, at the Department's discretion,
18 additional, programmatic contract reviews, including
19 on-site or virtual monitoring for compliance, and

20 b. the entity grants to the Office of the State Auditor
21 and Inspector, the Department, the federal government,
22 and any other authorized representatives the right to
23 audit, inspect, and review all books and records
24 pertaining to services rendered under their contract.

1 B. Eligibility for services is limited to Oklahoma residents
2 who, at the time of initial contact, are pregnant or the biological
3 parent of an unborn child.

4 C. Any program participant who voluntarily terminates a
5 pregnancy may be eligible to continue receiving non-medical support
6 and parenting-related services through the Program for a period not
7 to exceed six (6) months from the date of pregnancy termination, as
8 determined by Department rule.

9 SECTION 4. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 1-234.5 of Title 63, unless
11 there is created a duplication in numbering, reads as follows:

12 A. Contractors shall collect and report to the State Department
13 of Health de-identified data necessary to evaluate program
14 performance, including, to the extent feasible:

- 15 1. Participant demographic and risk characteristics;
- 16 2. Referrals to state and federal programs;
- 17 3. Service utilization and engagement, including behavioral
18 health and nutrition services;
- 19 4. Maternal outcomes such as prenatal care initiation,
20 postpartum visit completion, and reported postpartum depression; and
- 21 5. Infant outcomes such as gestational age at birth, birth
22 weight, NICU utilization, and attendance at initial well-child
23 visits.

1 B. The Department shall, on or before December 31 of each year
2 in which funds are expended under this act, submit a report to the
3 Governor, the President Pro Tempore of the Oklahoma State Senate,
4 and the Speaker of the Oklahoma House of Representatives summarizing
5 program implementation, utilization, and outcomes, and offering
6 recommendations regarding continuation, expansion, or modification
7 of the program.

8 SECTION 5. This act shall become effective November 1, 2026.

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10 60-2-17039 JM 03/05/26